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■ STRICTLY CONFIDENTIAL — ATTORNEY-CLIENT PRIVILEGE ■

SWORN AFFIDAVIT

(Filed Before the Court of Civil Judge, Karachi South)

Case Reference:	CS No. 2024/KHC/0817
Suit Title:	Saira Hussain v. Tariq Hussain & Imran Malik
Affidavit of:	Mst. Nasreen Bibi d/o Muhammad Saleem
CNIC No.:	42201-6534912-4
Capacity:	Eyewitness — Neighbouring Resident
Date Sworn:	14th March, 2024

I, Mst. Nasreen Bibi, daughter of Muhammad Saleem, resident of House No. B-47, Street 9, Gulshan-e-Iqbal, Block 3, Karachi, Muslim, adult, holding CNIC No. 42201-6534912-4, do hereby solemnly affirm and state as follows:

That I have been a resident of the above-mentioned address for the past nineteen (19) years and am personally acquainted with the family of Mr. Tariq Hussain son of Ghulam Hussain, who is the owner of residential property bearing Survey No. 74/C, measuring 240 Square Yards, situated at Block 6, PECHS, Karachi (hereinafter referred to as the '**Disputed Property**').

That the Disputed Property was originally purchased jointly by Mr. Tariq Hussain and his sister, Mst. Saira Hussain, from the estate of their deceased father, Ghulam Hussain, vide Sale Deed dated 09th June, 2011, duly registered with the Sub-Registrar, Karachi South, under Document No. SR/KS/2011/4492. Both siblings contributed equally to the purchase price of Rs. 38,00,000/- (Rupees Thirty-Eight Lakhs Only).

That on or about 22nd July, 2023, I personally witnessed Mr. Tariq Hussain having a heated argument with his sister Mst. Saira Hussain at the front gate of the Disputed Property. During this argument, Mst. Saira Hussain explicitly stated, in my presence and in Urdu, the words: '*Yeh property meri bhi hai, tum isko bechne ke haqdaar nahi ho akele*' (Translation: 'This property belongs to me as well; you alone have no right to sell it'). Mr. Tariq Hussain did not deny this claim at the time.

That on 05th August, 2023, I observed a white Toyota Corolla, registration plate KHI-4471, parked outside the Disputed Property for approximately three hours. I later came to know, through the locality residents, that the said vehicle belonged to Mr. Imran Malik son of Abdul Malik, who was visiting to inspect the property with the purported intention of purchasing it.

That to my knowledge and observation, Mst. Saira Hussain was residing abroad (Kingdom of Saudi Arabia) between October 2023 and February 2024 and had no knowledge that Mr. Tariq Hussain had executed a Sale Deed in favour of Mr. Imran Malik on 18th November, 2023, for a total consideration of Rs. 1,20,00,000/- (Rupees One Crore Twenty Lakhs Only).

That I was never approached by any representative of Mr. Tariq Hussain or Mr. Imran Malik to provide consent or a No-Objection Certificate as required under any co-ownership arrangement, nor was Mst. Saira Hussain's Registered Power of Attorney holder, Mr. Zubair Ahmed (her husband), contacted in this regard.

6.

That the said sale transaction appears to have been conducted without the knowledge, consent, or co-signature of Mst. Saira Hussain, in direct violation of her proprietary rights as a co-owner of record.

7. I affirm this statement based on my direct observation and knowledge of the events.

That I make this affidavit voluntarily, without any inducement or coercion, and the contents stated herein are true and correct to the best of my knowledge and belief.

8.

VERIFICATION

Verified at Karachi on this 14th day of March, 2024, that the contents of the above Affidavit are true and correct to the best of my knowledge and belief and nothing material has been concealed therefrom.

Mst. Nasreen Bibi (Deponent)

Oath Commissioner / Notary Public Karachi